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February 10, 2025

By: Guthrie

An Act relating to utility vehicles; amending 47 O.S. 2021, Section 11-1116, which relates to self-propelled or motor-driven and operated vehicles; updating statutory language; modifying statutory reference; prohibiting certain vehicles exceeding specific speed when operated on streets and highways; modifying location for operation of certain vehicles; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 11-1116, is amended to read as follows:

Section 11-1116. A. The self-propelled or motor-driven and operated vehicles described in this section shall be prohibited from operating or shall be limited in operation on the streets and highways of this state.

B. Self-propelled or motor-driven cycles, known and commonly referred to as "minibikes" and other similar trade names, shall be prohibited from operating on the streets and highways of this state, except:

1. When used in a parade; or
2. When registered, as required by subsection E of Section 1151

of this title, and operated in this state by food vendor services

1 upon streets having a speed limit of thirty (30) miles per hour or
2 less.

3 All minibikes offered for sale in this state shall bear the
4 following notice to the customer: "This machine is not manufactured
5 or sold for operation on the public streets or highways. Since it
6 is not provided with equipment required by law for street or highway
7 use, all persons are cautioned that any operation of this vehicle
8 upon a public street or highway will be in violation of the motor
9 vehicle laws of this state and will subject the violator to arrest."

10 C. Golf carts and utility vehicles, as defined by Section 1102
11 of this title, shall not be operated on the streets and highways of
12 this state except:

13 1. Golf carts or utility vehicles owned by the Oklahoma Tourism
14 and Recreation Department, and operated by employees or agents of
15 the Department or employees of independent management companies
16 working on behalf of the Department, may be operated on the streets
17 and highways of this state during daylight hours or under rules
18 developed by the Oklahoma Tourism and Recreation Commission, when
19 the streets and highways are located within the boundaries of a
20 state park. The Department shall have warning signs placed at the
21 entrance and other locations at those state parks allowing golf
22 carts or utility vehicles to be operated on the streets and highways
23 of this state located within the boundaries of those state parks.
24 The warning signs shall state that golf carts and utility vehicles

1 may be operating on streets and highways and that motor vehicle
2 operators shall take special precautions to be alert for the
3 presence of golf carts or utility vehicles on the streets and
4 highways;

5 2. The municipal governing body has adopted an ordinance
6 governing the operation of golf carts ~~and/or~~ or utility vehicles on
7 city streets; provided, such ordinances shall include necessary
8 vehicle lighting and safety requirements;

9 3. Golf carts or utility vehicles may operate on state highways
10 only if making a perpendicular crossing of a state highway located
11 within the boundaries of a municipality which has adopted an
12 ordinance governing the operation of golf carts ~~and/or~~ or utility
13 vehicles;

14 4. The board of county commissioners of a county has approved
15 the operation of golf cart ~~and/or~~ or utility vehicle traffic on
16 roadways within the county, and:

17 a. the roadway has a posted speed limit of twenty-five

18 (25) miles per hour or less,

19 b. the roadway is located in an unincorporated area, and

20 c. appropriate signage, cautioning motorists of the
21 possibility of golf cart or utility vehicle traffic,
22 is erected by the board of county commissioners; or

23 5. Street-legal utility vehicles that are registered as a motor
24 vehicle pursuant to ~~subsection B of~~ Section ~~±~~ 1-171.1 of this ~~act~~

1 title may be operated on the streets and highways of this state.
2 Provided, however, when traveling on U.S. highways, street-legal
3 utility vehicles shall be restricted to those posted at fifty (50)
4 miles per hour or less. Street-legal utility vehicles shall not be
5 operated on the National System of Interstate and Defense Highways
6 ~~or U.S. highways.~~

7 D. All-terrain vehicles shall not be operated on the streets
8 and highways of this state, except:

9 1. On unpaved roads which are located within the boundaries of
10 any property of the Forest Service of the United States Department
11 of Agriculture;

12 2. On highways if:

13 a. the vehicle needs to make a direct crossing of the
14 highway while the vehicle is traveling upon a
15 regularly traveled trail and needs to continue travel
16 from one area of the trail to another and, if the
17 vehicle comes to a complete stop, yields the right-of-
18 way to all oncoming traffic that constitutes an
19 immediate hazard, and crosses the highway at an angle
20 of approximately ninety (90) degrees to the direction
21 of the street or highway. This exception shall not
22 apply to divided highways or highways with a posted
23 speed limit of more than thirty-five (35) miles per
24 hour in the area of the crossing,

1 b. the vehicle needs to travel on a highway in order to
2 cross a railroad track. In that event, the all-
3 terrain vehicle may travel for not more than three
4 hundred (300) feet on a highway to cross a railroad
5 track,

6 c. the operator of the all-terrain vehicle making the
7 crossing at a highway has a valid driver license, and

8 d. the operator of the vehicle makes a crossing on a
9 highway during daylight hours only;

10 3. On streets and highways within a municipality if the
11 municipal governing body has adopted an ordinance governing the
12 operation of golf carts, utility vehicles or all-terrain vehicles on
13 streets and highways within the municipality; or

14 4. On roadways within unincorporated areas of a county if those
15 roadways are not part of the state highway system or the National
16 System of Interstate and Defense Highways; provided, however, that
17 the driver is a licensed driver.

18 E. Mopeds, as defined by Section 1-133.2 of this title, may be
19 operated on the streets and highways of this state if:

20 1. The municipal governing body has adopted an ordinance
21 governing the operation of mopeds on city streets; provided, such
22 ordinances shall include necessary vehicle lighting and safety
23 requirements; or

1 2. The board of county commissioners of a county has approved
2 the operation of mopeds on roadways within the county, not including
3 roadways within a municipality.

4 SECTION 2. This act shall become effective November 1, 2025.

5 COMMITTEE REPORT BY: COMMITTEE ON AERONAUTICS AND TRANSPORTATION
6 February 10, 2025 - DO PASS
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